Brief for Hammond Legal

Legal Brief: Malicious Prosecution Claim

Overview:

This legal brief is prepared for the consideration of your legal firm handling the case of Forward Focused Group (FFG) against 2 individuals (Nathan Halls and Barbra Lundgren) within the NDIA/NDIS, NDIS Commission and other involved parties. The claim revolves around a campaign of malicious prosecution, targeting FFG and its director, Vida, which culminated in Vida's wrongful arrest and subsequent acquittal of all charges. The events are detailed below, showing the coordinated efforts by specific NDIA/NDIS staff to damage the reputation and operations of FFG.

Background:

- **Company Overview**:
  Forward Focused Group (FFG) began operations in October 2020, quickly earning a reputation for strong advocacy in the disability and employment sectors. By April 2022, FFG secured a Federal Employment Services contract worth approximately $5 million per year.

ES131 - Forward Focused Group: Signed Letter of Execution and Letter of Offer, Deed Particulars and Schedule [SEC=OFFICIAL:Sensitive]

W WONG Andrew <Andrew.Wong@dese.gov.au>
To: Vida Reid

Reply Reply all Forward
Wed 23/03/2022 12:03

You forwarded this message on Wed 31/05/2023 15:58

ES131 Forward Focused Grou... 162 KB
20220321 Forward Focused ... 9 MB

2 attachments (10 MB) Save all to OneDrive - Forward Focused Group Download all

OFFICIAL: Sensitive

Hi Vida, please find attached the following

- Signed Letter of Execution
- Signed Letter of Offer, Deed Particulars and Schedule

Regards

Andrew Wong
Assistant Director (Account Manager)
State Office Network - Western Australia

Australian Government Department of Education, Skills and Employment
Level 2, 263 Adelaide Tce, Perth
P: (08) 9485 3094 M: 0429 435 200
E: andrew.wong@dese.gov.au



The Department of Education, Skills and Employment acknowledges the traditional owners and custodians of country throughout Australia and their continuing connection to land, waters and community. We pay our respects to them and their cultures, and Elders past, present and emerging.



Australian Government
Department of Education, Skills and Employment

Our ref: ES131

Andrew Wong
Account Manager

Vida Reid
Founding Executive Director
Forward Focused Group Pty Ltd.
210 Jull Street
ARMADALE WA 6112

Email: vida@ffg.net.au

Dear Vida Reid

Workforce Australia Services Deed of Standing Offer 2022 - 2028
Execution Letter

Please find enclosed an executed copy of the **Workforce Australia Services Deed of Standing Offer 2022 - 2028 (the Deed)** between Forward Focused Group Pty Ltd. (your organisation) and the Commonwealth of Australia as represented by the Department of Education, Skills and Employment (the Department), for your organisation's records.

Please contact me by phone on (08) 9485 3094or by email to andrew.wong@dese.gov.au if you have any questions.

Yours sincerely

Andrew Wong

- **Reputation for Advocacy**:
  By 2021, FFG's efforts in securing vital services for its clients drew negative attention from Nathan Halls, Assistant Director at NDIA. This animosity manifested in multiple threats, starting on May 31, 2021, when FFG advocated for an elderly, homeless man (David Germon) who was at risk of losing his leg.

Despite the NDIA's refusal to assist, Vida personally funded temporary shelter for the man. This act of kindness prompted threats of legal action from the NDIA, escalated by Halls after Vida confronted him directly via emails to him and his staff. Nathan was hurt and angry after this confrontation.

VR Vida Reid<vida@ffg.net.au>

Reply | Reply all | Forward

To: nathan.halls@ndis.gov.au

Fri 04/06/2021 16:04

Cc: Sullen, Kaela <Kaela.Sullen@ndis.gov.au>; reportableincidents@ndiscommission.gov.au; Tingey, Dean <Dean.Tingey@justice.wa.gov.au>

Bcc: feedback@ndis.gov.au

Hi Nathan,

I received a call from the police today at 5:14 pm advising us that Mr. Nathan Halls from the NDIA has called the police with concerns that the participant is at risk.
After explaining to the police officer that the participant has a medical guardian and also giving a full picture and background, she was unsure as to why this phone call by the NDIA would be made.

I do feel that you have tried to help and appreciate your kind efforts. However, I must say we really need to have clear communication between us in a better way and have actual conversations on how to move forward rather than calling the police. I would be glad and willing to speak with you if you advise the best contact number and time to call.

The police advised since the participant has a medical guardian this is their decision and responsibility so the police will leave the matter at that as they believe the participant is in good hands.

On a brighter note again – we have been very busy and on the road the whole day. Today we have found and secured David an accommodation for $250 a week in Bentley if he agrees to go to this property and the public trustee agrees to pay for the property rental.

As you can see , we are not just sitting around doing nothing 😡 we truly care for David and have his best interest at heart.

I have ccd dean the public guardian for transparency here.

Warm Regards,
Vida Reid

Founding Executive Director
Forward Focused Group
Armadale, WA 6112

National Disability Insurance Scheme Provider delivering Psychosocial Recovery Coach and Support Coordination services
T: 0478889648
Website: https://forwardfocusedgroup.com.au/about-our-founder/

VR Vida Reid<vida@ffg.net.au>

Reply | Reply all | Forward

To: Sullen, Kaela <Kaela.Sullen@ndis.gov.au>

Sat 29/05/2021 09:11

Cc: enquiries <enquiries@ndis.gov.au>; Simon Reid <simon@ffg.net.au>

Hi Kaela,

Thank you for the kind response and I hope you are well too.

To highlight the difficulties surrounding David Germons accommodation situation I would like to report yesterday's events. I attempted to find David a short term accommodation stay with an NDIS registered provider, Perth disability services. I explained to the provider all of David's situation, his homelessness, his frailty and his medical risks.

We picked David up from the street with the help of his support worker. **Police** had to cordon off the street for us due to David's frailty and location.

I transferred David in my car to the accommodation and semi carried David upstairs. He can barely walk now, and has multiple injuries, but we helped him upstairs to inspect the accommodation.

The accommodation provider representative said David will have to go back downstairs while he checks with the owner. Perth disability services representative Aman the n stated to us that " David can't stay there because there are some posh people there who wouldn't like someone like David staying there, and they don't want to lost the accommodation because they make too much money". I was disgusted with their actions.

I have now checked David into a hotel which I am paying for myself and have put in place a support worker to monitor him, while try to figure out a plan of what to do next. I refuse to let David go back on the streets as my duty of care does not allow it as I fear he is at **great risk of death**.

We implore the ndis to change David's plan to plan managed so we can set him up a temporary accommodation and get him assessed by an OT. I believe a SIL may be the only way to effectively care for David's wellbeing long term. Please help us

Warm Regards,
Vida Reid

Founding Executive Director
Forward Focused Group
Armadale, WA 6112

National Disability Insurance Scheme Provider delivering Psychosocial Recovery Coach and Support Coordination services
T: 0478889648
Website: https://forwardfocusedgroup.com.au/about-our-founder/

ATT process disclosed this email as part of evidence bundle to us amongst many others

From: Halls, Nathan <Nathan.Halls2@ndis.gov.au>
Sent: Friday, 15 July 2022 4:40 PM
To: Ross, Marie <Marie.Ross@ndis.gov.au>
Subject: RE: NDIA/ NDIS Commission shared complaint SARAH-JANE CLULOW: 430838840 [SEC=OFFICIAL:Sensitive]

Great job on this Marie, a real baptism by fire into the PST.

Nate

Events Leading to Arrest:

- **Retaliation and Complaints**:
  Halls responded to Vida's advocacy efforts by calling police on her and filing a complaint with the NDIS Commission, initiating a string of anonymous complaints, many of which were linked to Halls' influence. Simultaneously, former FFG staff, led by ex-senior employee Terri Roberts, began holding meetings inviting other people to them and leaking sensitive company data to competitors and the NDIA. Roberts was reportedly incentivized by competing businesses with financial benefits, including a house and car.
- **NDIA Collusion**:
  In June 2022, Halls called Vida and requested FFG to hire his close associate, Brooke Andrews. Despite a strained relationship with Halls, Vida agreed, hoping to improve relations with the NDIA. Andrews, however, contributed nothing of substance during her brief employment, instead revealing her close sexual friendship and connections with Halls and NDIA Director Barbra Lundgren, who had allegedly coached her to report back on FFG's internal affairs.
- **Compliance Lock**:
  On May 5, 2022, FFG was hit with a compliance lock that halted its payments, citing a questionable financial transaction. The NDIA failed to clarify the alleged wrongdoing, despite FFG's offers to rectify any errors. Internal Investigation revealed that FFG's accountant, Rejaul Alam, had improperly invoiced $160,000 in a single lump sum for cleaning services for period of 1-2 months, which was clearly a mistake by a clerical error. Despite this, FFG's leadership was not allowed to address the matter before sanctions were imposed.
- The compliance lock placed on FFG, along with the allegations of financial impropriety, appears to have been exaggerated and unjustly applied, preventing the business from addressing any errors. Despite FFG's offers to rectify mistakes,

sanctions were imposed without procedural fairness, further crippling the business(20240613 Tender Bundle ...).

- Vida then gave the accountant a first and final warning instead of firing him due him stating his mother having cancer etc..
- In the background Nathan Halls was actively advising and directing FFG staff to send him our company information and anything he can get to arrest me. We have these sms's and emails now.
- Nathan Halls went as far as advising other business, state guardians and hospitals not to do business with Vida and FFG.
- **Targeted Retaliation:**
  Nathan Halls seemed to initiate a targeted retaliation against Vida and her company, FFG, after she confronted him about NDIA's failure to assist an elderly homeless man. This retaliation included threatening legal action, involving the police, and filing complaints with the NDIS Commission to escalate matters further. It appears this was a personal vendetta fueled by animosity(20240613 Tender Bundle …).

- **Coercion and Manipulation:**
  Halls reportedly pressured others into participating in the campaign against FFG. This includes encouraging former employees to file false complaints and leak confidential company data, while leveraging the complaint process to harm the business without allowing for proper defense(20240613 Tender Bundle …). This aligns with the "baptism by fire" comment from Nathan Halls, implying his willingness to subject FFG to intense scrutiny and pressure from the very beginning.

Hiring Sabotage:

- Halls even sought to infiltrate FFG by suggesting that Vida hire his close associate, Brooke Andrews, who had no substantial contribution to the business but was likely reporting back on internal matters. This act of infiltration shows a concerted effort to undermine the company from within(20240613 Tender Bundle …).
- **Accountant's Actions and Departure**:
  In 2021, a senior staff Terri Roberts member introduced FFG to an accountant named Rejaul Alam (RJ), who was subsequently hired. Shortly after, the senior staff member resigned and took clients to a competitor business Nurse Assist 24/7. RJ later caused significant financial discrepancies, including an incorrect lump-sum charge of $160,000 for cleaning services. Despite internal warnings, the accountant remained employed for some time before fleeing the country to Canada, after Vida's arrest in October 2022. During his exact departure the Director of Nurse Assist 24/7 also left Australia for south Africa for a significant amount of time. Later coming to light that the accountant was also hired by the other business.
- **Arrest and Charges**:
  On October 19, 2022, Vida was arrested on charges of financial fraud, but all

charges were dropped on February 28, 2024 citing Dismissed for want of prosecution s25 of the criminal code act 2004. The arrest was largely based on allegations from former employees, whose complaints boiled down to petty grievances rather than any legitimate accusations of fraud. There was also evidence that NDIA staff members were influencing these individuals, dictating what to report and where to send their statements.

- The raid on Vida's house, inappropriate treatment of our family, and the public humiliation we faced all point to an abuse of power designed to break Vida emotionally and socially. This indicates that the NDIA's actions extended beyond mere legal prosecution to a campaign of public and personal destruction
- There were 2 former clients who made allegations of no services received one who is a compulsive liar and lied about being raped and the other very close friends with an ex jilted employee of FFG. This women also has schizophrenia amongst other things.

Evidence of Malicious Intent:

- **Targeted Harassment**:
  Multiple pieces of evidence obtained, including emails and text messages, show that Halls was coordinating a campaign to undermine FFG by weaponizing the NDIS Commission's complaint process. Halls went as far as instructing state-appointed guardians to withdraw their clients from FFG's services without providing any justification.
- **NDIA's Influence Over Investigations**:
  Despite numerous complaints being filed against FFG, the NDIS Commission failed to follow procedural fairness, neither investigating the complaints properly nor allowing FFG to respond to the allegations before Vida's arrest. In an internal email to other ndis and commission staff Nathan halls refers to Vida as "Baptism by fire". Including other communications with FFG staff where he coaches them on what to say and do.
- **Coerced Testimonies**:
  During the subsequent legal proceedings, The NDIA FRAUD FUSION TSKFORCE Assistant Director – Bruce Graydon threatened FFG's disabled clients, including Jonathan Shapira elderly 66 yrs old, were pressured by NDIA's Fraud Fusion Taskforce to testify against Vida under threat of imprisonment. One client was even offered substantial financial inducements, including increased NDIS funding of $200,000.00 plus his son being accepted into the ndis scheme, as a bribe to provide testimony favorable to the NDIA's case against Vida. These coercive tactics are well documented, with recordings of these conversations readily available as evidence.

- **Bribery**
  NDIA's Fraud Fusion Taskforce coerced disabled clients of FFG, threatening imprisonment or offering substantial financial incentives to testify against Vida. This, along with coaching former employees on what to report, suggests a coordinated effort to build a fraudulent case against Vida and FFG

Conclusion:

FFG has been the victim of a coordinated and malicious effort led by key individuals within the NDIA to damage its business, reputation, and financial stability. The malicious prosecution and harassment by the NDIA, facilitated by staff members with personal vendettas, led to Vida's wrongful arrest and significant financial and emotional hardship for both her and the business. The complete exoneration of Vida in February 2024 highlights the groundless nature of the accusations against her.

This brief seeks legal redress for the malicious prosecution, with a focus on recovering damages and holding the involved parties accountable for their actions. Supporting documentation, witness statements, and communications are available to substantiate these claims.

The Ndis or the ndis commission never provided us with an opportunity to address any complaints and they did not follow their own guidelines of procedural fairness and jumped to my arrest**. (please see diagram on last page -T48).** They raided our house, pulled our children out of their beds including my non verbal disabled son to find a few books in my safe! No diamonds, wads of cash or gold etc.. (a part from my engagement ring and one gold set from over 15 years ago).

It appears that Nathan Halls and others within the NDIA engaged in a coordinated, malicious campaign to destroy FFG through a combination of personal vendettas, abuse of procedural powers, and coercion of individuals to support their narrative. The ultimate goal seems to have been to discredit Vida, dismantle her business, and ruin her reputation, culminating in an unjust arrest that was later dismissed due to lack of evidence.

This sequence of events strongly supports our claims of malicious prosecution, targeting, and harassment. Given the available evidence, there is substantial ground for seeking legal redress for the damages suffered.

They striped me naked 3 times in one day to break me. I was touched inappropriately during one of the searches. They celebrated my arrest and plastered my face and children's faces all over social media. I have bee unemployed for 2 years now, have gone on medications I was never on previously and received fortnightly psychology sessions due to the trauma inflicted.

I don't believe in justice anymore. I believe in vengeance. Someone is responsible for these actions and they must be held accountable as we are owed damages in the millions.

The Ayres & Braithwaite regulatory pyramid[1] helps to illustrate how the NDIS Commission works to support participants' choice and control and to support a responsive and effective NDIS market.

Figure 1: Compliance Pyramid



The pyramid helps to show how the NDIS Commission takes a responsive and proportionate approach to regulation, applying the strongest actions to the most serious issues and breaches. It also demonstrates the ability to escalate actions if an initial response does not achieve the intended outcome.

Some actions or regulatory tools are alternatives, while others are used in combination. Using a range of tools from the base of the pyramid may often achieve compliance fairly quickly without needing to escalate to more serious enforcement action, if appropriate. However, it is also open to the NDIS Commission to proceed directly with the strongest actions in a particular case.

Educate and persuade

The primary approach to achieving ongoing compliance and building the capacity of the sector is to educate, advise and encourage NDIS providers and workers to identify and understand their obligations and improve their practice.

Measures may include practical advice to improve outcomes, targeted education and outreach activities, engaging with the regulated community at the earliest possible stage, and providing timely information and advice through the NDIS Commission website, social media, and information sessions.

[1] I. Ayres and J. Braithwaite (1992) Responsive Regulation: Transcending the Deregulation Debate. New York: Oxford University Press. http://johnbraithwaite.com/monographs/

Sustaining the Scheme Proof Points

- **The new pricing authority and strong regulation of providers** were also welcomed as proof points of a suite of reforms designed to protect participants from exploitation and restore equity and agency to them. This contrasts with their current experience of being at the mercy of spiralling costs and potentially unscrupulous providers, against whom they feel they have little recourse. The new and strengthened watch-dog role was therefore also welcomed. Participants want accountability for providers. Indeed, demonstrating that we are *first* addressing providers and pricing is critical before discussing reforms that impact participant accessibility or funding.
- After presenting respondents with the above proof points that provide vital, believable context of reforms designed to benefit participants, we were able to elicit a degree of *qualified tolerance* for reforms that would restrict either eligibility for the Scheme (raising the threshold for children with developmental delay) or the amount of support high-need participants would receive (moving to a 1:3 care model for Supported Independent Living participants). Respondents do not like these reforms but they may be willing to tolerate them where there are/is:

enabled by a more human-centred system.

- There was also significant respondent concern regarding the threat that spiraling costs might pose to the Scheme – giving its critics a weak spot to attack. Indeed, when we presented rorts, fraud, and unreasonable pricing as posing an existential threat to the NDIS, we were able to create an environment in which respondents were amenable to reforms designed to counter these things.
- After accepting the dual objectives as both legitimate and desirable, a series of 'proof points' were presented to respondents to explore to what extent they built credibility for the objectives. Largely, these proof points worked well in this role.



Senator Jordon Steele-John · 8/6/2024 ···

Replying to @SenatorJordon

It's vital that folks reporting on the #NDIS right now remember that Minister Shorten spent $400k on **Redbridge** focus groups, testing messages about how to get away with cuts & restricting supports.

The RedBridge work, delivered in four reports, found that appetite for NDIS reform was generally mixed but that decisions to "restrict either eligibility for the scheme ... or the amount of support high-need participants would receive" could be met with "qualified tolerance" by participants and their families if they were sold in concert with a "believable" story about the level of fraud and rorting in the program.



If RedBridge had been conducting research before its findings were publicly revealed, it would help explain why there was such an immediate and forceful focus on fraud

narratives in 2022, which culminated in actions against individuals and organizations like Vida and FFG.

BILL SHORTEN: We need to crack down on NDIS rorts and get the scheme working as intended again | The Nightly

So, while the formal publication date of the RedBridge research might be early 2023, it's entirely feasible that the groundwork for this research was laid months earlier, informing the aggressive anti-fraud measures that began in 2022.